



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :
- against : FINAL
Police Officer Timothy Chan : ORDER
Tax Registry No. 957448 : OF
Housing Borough Manhattan : DISMISSAL
-----X

Police Officer Timothy Chan, Tax Registry No. 957448, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 2018 18967, as set forth on form P.D. 468-121, dated May 10, 2018, and after a review of the entire record, having pleaded Guilty, is found Guilty as charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Timothy Chan from the Police Service of the City of New York.


JAMES P. O'NEILL
POLICE COMMISSIONER

EFFECTIVE: 11/27/15



POLICE DEPARTMENT

September 23, 2019

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

2018-18967

Police Officer Timothy Chan :

Tax Registry No. 957448 :

Housing Borough Manhattan :

-----X
At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

Roger Blank, Esq.
387 Park Avenue South, 5th Floor
New York, NY 10016

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Timothy Chan, on or about October 26, 2017, while assigned to the [REDACTED], engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Chan made a false allegation against his Supervisor, Person A.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT-
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 26, 2019. Respondent, through his counsel, entered a plea of Guilty to the subject charge and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find that no mitigation is warranted, and recommend that Respondent be dismissed from the New York City Police Department.

SUMMARY OF EVIDENCE IN MITIGATION

On October 26, 2017, Respondent went to his local public library and set up a fictitious e-mail account. His purpose in setting up the account was to make a false complaint to IAB against his supervisor, Person A. Specifically, Respondent, who was assigned to the [REDACTED] at the time, wrote an e-mail to IAB stating, "Person A, [REDACTED] has been abusing his wife. The last incident I am aware of happened a few days ago. He got upset and threatened her life with his gun if she told anyone of the abuse. I'm a personal friend of hers. Please help her. [REDACTED]" (Tr. 16-17, 26-28)

After IAB investigated the allegation and determined it to be false, the e-mail was eventually traced to Respondent.

Respondent testified that he knowingly made the false accusation with the hope that Person A would be transferred out of the unit. According to Respondent, the officers in the command were "walking on egg-shells" around Person A, who had a history of mistreating and "bullying" the officers, creating a "very tense environment." For example, if an officer didn't have any collars for a month, Person A would have the officer enter subway cars late at night and make arrests of homeless people; Respondent made a complaint to IAB about this behavior. Respondent also testified that Person A had stopped allowing officers to come back to the command 20 minutes before the end of their tour in order to change and sign out, instead having them sign out in uniform. Person A also "arbitrarily made up a rule" where he did not permit officers to go to the restroom or locker room after roll call. (Tr. 11-15, 18, 22, 25-26)

Rather than speak with another supervisor about his concerns, Respondent chose to send the e-mail with the false accusation. Respondent testified that he regrets having done so, that it was "out of character" for him to act that way, and that he is "so sorry" for what he did.

Respondent stated [REDACTED]

[REDACTED] he is more mature and has a better understanding of what he put Person A and his family through, and he feels "horrible" about it. He readily acknowledged that he was "one hundred percent wrong," and that any penalty imposed by the Department, short of termination, would be justified. (Tr. 17-19)

The parties stipulated that according to records, on October 18, 2017 Respondent was issued a command discipline by Person A for taking a later meal without permission.

However, Respondent testified that he did not become aware of the CD until after the date he made his complaint to IAB, and the Department Advocate acknowledged that there may, in fact, have been such a delay before Respondent became aware of the CD. (Tr. 31-32)

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on January 7, 2015. He has no disciplinary record.

Counsel for Respondent urges that Respondent's actions not be viewed in a vacuum, and that Respondent's misconduct should be considered in the context of the morale issues that existed at the command. More importantly, Respondent has matured since the time of the incident, he recognizes that he was wrong for what he did, and he has demonstrated remorse and accepted responsibility. The Department Advocate counters that with just over two years on the job, Respondent chose to deal with his disgruntlement by making a serious, false accusation, using the Department's disciplinary arm as a weapon against his supervisor. Citing *Disciplinary Case Nos. 2015-13352 & 2015-13559* (Sept. 28, 2017), the Department Advocate argues that the only appropriate penalty for such misconduct is separation from the Department.

On the one hand, counsel for Respondent is correct that his client accepted responsibility, and Respondent, on the witness stand, did appear to display genuine remorse for his actions. This tribunal also has considered numerous letters in which police colleagues of Respondent have opined that Respondent can continue to be an asset to the Department. However, the egregious error in judgment exhibited by Respondent raises serious questions regarding his integrity and trustworthiness. When faced with a stressful situation in the workplace, Respondent made a calculated decision to bring an extremely serious false accusation against his

supervisor, and then went to great lengths to disguise that he was the source of that accusation. This was not a situation where Respondent acted impulsively in the moment; rather, he took the time to create a fictitious e-mail account at a library solely for the purpose of leveling the false accusation. In doing so, Respondent deliberately manipulated the Department's internal investigative process with the hope that an NYPD [REDACTED] who was innocent of the accusation, would suffer serious consequences. Respondent's actions not only affected Person A, they impacted the Person A's family as well.

Respondent's conduct has undermined his ability to continue as a member of the service, and separation is warranted. Taking into account the totality of the circumstances and issues in this case, I recommend that Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

NOV 27 2019

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER TIMOTHY CHAN
TAX REGISTRY NO. 957448
DISCIPLINARY CASE NO. 2018-18967

Respondent was appointed to the Department on January 7, 2015. On his last three performance evaluations, he twice received overall ratings of 3.0, "Competent," and once received an overall rating of 3.5, "Highly Competent/Competent." [REDACTED]

Respondent has no disciplinary record. In connection with the instant matter, Respondent was suspended from duty from April 30, 2018 through May 29, 2018. He was placed on Level 1 Discipline monitoring on May 10, 2018; that monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials